

Page No.# 1/ vs Sri Hiranya Barman on 10 December, 2025

Author: Michael Zothankhuma

Bench: Michael Zothankhuma

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GAHC010279652023

2025:GAU-

AS:17127-DB

THE GAUHATI HIGH COURT
(HIGH COURT OF ASSAM, NAGALAND, MIZORAM AND ARUNACHAL PRADESH)

Case No. : Mat.App./10/2024

Smt. Shyamala Barman

Smt. Shyamala Barman, aged about 58 Years,W/O Shri Hiranya BarmanD/O Late
Monindra Chandra Barman,R/O Police Reserve near M.T. Office Jail Road,P.O
Jhalupara,P.S. Silchar, Tarapur District Cachar, Assam,
PIN 788003

VERSUS

Sri Hiranya Barman

Sri Hiranya Barman, aged about 64 years

S/O Late Jugamoni Barman

R/O Village. Barbond,

P.O Daloo, District- Cachar, Assam. PIN. 788111

2:EMONJYOTI SAIKIA

S/O LATE RANJIT SAIKIA

PERMANENT RESIDENT OF PUKHURIPORIA

P.S.- LALUK

PIN- 784160

DIST.- NORTH LAKHIMPUR

ASSAM.

3:DHARMESWAR DAIMARY

S/O SRI UMAR DAIMARY

R/O BORDONDI

P.O.- TELAM

PIN- 787061
DIST. - DHEMAJI
ASSAM.

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4:ORIENTAL INSURANCE CO. LTD.
OFFICE- ULUBARI
GUWAHATI- 781007

For the Appellant : Mr. P.K. Deka, Adv.

For the Respondent: Mr. I. Alam, Adv.

-BEFORE-

HON'BLE MR. JUSTICE MICHAEL ZOTHANKHUMA HON'BLE MR. JUSTICE KAUSHIK
GOSWAMI Date of hearing and judgement : 10/12/2025.

JUDGEMENT AND ORDER (Oral) (Michael Zothankhuma, J)

1. Heard Mr. P.K. Deka, learned counsel for the appellant. Also heard Mr. I. Alam, learned counsel for the respondent.

2. The present appeal has been preferred under section of 19 of the Family Courts Act, 1984, for setting aside the judgement and decree dated 13/09/2023 passed by the learned Principal Judge, Family Court, Cachar, Silchar, in FC (Civil) case No. 347/2018, by which the learned Family Court has allowed the dissolution of marriage between the parties by way of a divorce decree, by holding that the respondent-husband has been able to establish cruelty on the part of the appellant- wife under section 13(1)(ia) of the Hindu Marriage Act, 1955 (herein after referred to as the Act of 1955).

3. The brief facts of the case is that the parties were married under the Hindu customs and rituals in the year 1987. The parties along with their two children resided Page No.# 3/11 in a Police quarter, as the respondent-husband was a Police personnel.

4. The appellant-wife filed a Domestic Violence (DV) Case No. 146/2017 before the Court of the Judicial Magistrate First Class (JMFC), Silchar, Cachar in the year 2017, on the ground that the respondent-husband used to torture the petitioner, both mentally and physically. The DV case No. 146/2017 was disposed of by the Court of JMFC vide order dated 04/03/2021, by coming to a finding that it has been established that the respondent-husband had inflicted acts of domestic violence on the appellant- wife. The learned Court of JMFC thereafter passed the following directions :-

"2. Accordingly, it is directed -

I) That the respondent shall let the aggrieved person to reside in the shared

household of the respondent and the respondent shall not evict the aggrieved person or exclude her from the shared household or any part of it by the respondent save in accordance with the procedure established with law.

II) That the respondent shall not commit any further acts of domestic violence upon the aggrieved.

III) If the aggrieved desires to return to her matrimonial home, the respondent no.

1 shall make necessary arrangement for the same so that she can live there in a manner suited to her lifestyle.

IV) The respondent shall make a monthly payment of Rs. 4,000/- (Rupees Four Thousand) only towards the aggrieved for her maintenance (including food, clothing and medical expenses).

V) The respondent shall pay Rs. 30,000/- (Rupees Thirty Thousand) only as compensation to the aggrieved."

5. The respondent -husband filed a petition for dissolution of marriage under section 13(1)((ia)(ib) &(vi) of the Hindu Marriage Act, 1955, in the year 2018 i.e. Page No.# 4/11 subsequent to the filing of the DV case by the appellant -wife, but before disposal of the DV case. The learned Family Court thereafter framed 6(six) issues, which are as follows :-

"(I) Is there any cause of action for filing of the suit?

(II) Whether the respondent treated the petitioner with cruelty?

(III) Whether the respondent deserted the petitioner?

(IV) Whether the respondent has renounced the world by entering any religious order?

(V) Whether the petitioner is entitled to get decree of divorce as sought for?

(VI) What other relief/reliefs the party (ies) is/are entitled to?"

6. The learned Trial Court after adducing the evidence of the parties, came to a finding that the cause of action existed in favour of the appellant for institution of the suit. With regard to issue nos. 2 to 6, which were taken together, the learned Trial Court came to a finding that there had been desertion of the respondent-husband by the appellant-wife. It also came to a finding that cruelty had been proved on account of respondent's deep-anguish, dis-appointment, frustration, as the appellant-wife refused to have any sexual intercourse with the respondent and basically did not do wifely duties, on account of the appellant practicing a particular Sect /religion, which made her stay out of the home from morning to evening. Further, on returning home, the appellant continued to

remain busy in practicing spiritual rituals and did not discharge her marital obligations, which amounted to mental cruelty. However, the learned Family Court decided in the negative the issue as to whether the appellant- wife had renounced the world by entering into a religious order.

7. The appellant-wife has put to challenge the dissolution of marriage by the Page No.# 5/11 learned Family Court, on the ground that there was no cruelty inflicted upon the respondent by the appellant. Further, there was no proof that the appellant was a Brahmakumari. In this respect, he also submits that the learned Family Court has categorically held that there was no proof of the appellant being a Brahmakumari, when it decided issue no. 4 in the negative.

8. Mr. I. Alam, learned counsel for the respondent, on the other hand, submits that the appellant having become a Brahmakumari, the appellant has forsaken all her wifely duties and renounced the world. As such, the mental cruelty inflicted upon the respondent-husband attracts section 13(1)(ia) of Hindu Marriage Act, 1955. As such, there is no ground for interfering with the impugned judgement and order.

9. We have heard the learned counsels for the parties.

10. The petition for dissolution of marriage had been made by the respondent- husband on three grounds. Firstly, on ground of cruelty. Secondly, on the ground of the appellant having deserted the husband for a continuous period of not less than 2 (two) years and thirdly, on the ground that the appellant had renounced the world by entering the religious order of Brahmakumari, by becoming a member of the Prajapita Brahmakumari Ishwaria Vishwavidyalaya (PBIV).

11. The facts of the case shows that the appellant and the respondent were living together in a Government quarter allotted to the respondent, till the retirement of the respondent from the Police force. Thereafter, the respondent left the quarter, which continued to remain occupied by the appellant and her two children. As desertion in terms of section 13(ib) requires desertion for a continuous period of not less than two years immediately preceding the presentation of the petition of the petition, we are of Page No.# 6/11 the view that no case of desertion by the appellant has been made out by the respondent-husband. In fact, it is the respondent who had moved out of the quarter and not the appellant. As such, we are not in agreement with the findings of the learned Family Court on this score. There can be no dissolution of marriage under section 13 (1) (ib), as the said provision is not attracted.

12. The next question to be decided is whether the appellant had renounced the world by entering a religious order. In this respect, though there is nothing to indicate in the evidence of the appellant and her daughter that the appellant had become a member of Prajapita Brahmakumari Ishwaria Vishwavidyalaya (PBIV), the evidence of PW-2 and PW-3 adduced before the learned Family Court, prove the fact that the appellant had joined Prajapita Brahmakumari Ishwaria Vishwavidyalaya. Further, it is not in dispute that the appellant, though married, was always dressed in white clothes and was not wearing Vermillion (Sindoor) and Shankha (white conch bangles). Para 3, 4, 5, 6, 7, 8 & 9 of the affidavit of PW-3, which is similar to the evidence of PW-2, is reproduced herein below, as follows :-

"3. That since 2014, the OP dedicated herself towards spiritualism and has been virtually leading her life like a saint, renouncing all relevant earthly matters, family life, by ignoring her life towards her marital duties towards Petitioner.

4. That I was one of the bicharis, who tried to resolve the problem between Petitioner and OP because since 2014, the OP dedicated herself towards spiritualism and has been virtually leading her life like a saint, renouncing all relevant earthly matters, family life, by Ignoring her life towards her marital duties towards Petitioner, but all in vain.

5. That, petitioner and I, along with other well-wishers tried our level best to make OP understand to lead a normal conjugal life with love and affection as such spiritualism and non co-operation and non-involvement in conjugal life with petitioner is causing strain in petitioner's as well as OP's marital life but all in vain.

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6. That OP used to go out of house early in the morning and return after sunset, spending most of her time In various spiritual activities in Prajapati Bramhakumari Organization.

7. That, as per Hindu culture, even in Dimasa Tradition, a married woman is supposed to wear Vermillion (Sindoor) and Shankha (white conch bangles) In the name of her husband and this also signifies a woman being married but the OP stopped wearing Sankha, Vermillion (Sindoor), like she used to wear after marriage but stopped wearing so after engaging herself in Spiritual activities, dress up like a widow in plain white Saree.

8. That Petitioner tried his level best to make his wife, i.e., OP understand to lead a life like that of a normal married couple, but all went vain. There was also Intervention of other elderly people of our community, of which I was also a part of, tried our level best to dissuade such practice and lead a life of normal married wife but the OP was adamant and continued to live a life of spiritualism, derogating the social and religious tradition of Dimasa Community.

9. That, OP renounced herself from all earthly matters and deserted herself to lead a normal marital life with Petitioner. The petitioner also stated to me that back in the time, when petitioner used to work as a police Personnel, he used to find my home empty, after his hectic scheduled duty of work. His wife, i.e., OP wasn't there to take care of him, his small basic needs. He had to do household chores, prepare meals for himself, and then go to duty while OP was busy with her spiritualism. Whenever he tried to make her understand about the value of family life, she used to misbehave with me."

The above evidence has not been shaken by the appellant during cross- examination.

13. The evidence of the appellant as DW-1, in her cross examination, is to the effect that as per Hindu Barman culture, a widow does not wear vermilion on the forehead and also does not wear conch bangles on her arm.

14. The evidence of DW-2, who is the daughter of the appellant and the respondent, is to the effect that as per Dimasa culture, married women put vermilion Page No.# 8/11 on their forehead.

15. The above evidence of PWs- 2 & 3 and DWs 1 & 2, clearly show that only married women put vermilion on their forehead and wore Conch bangles as per Dimasa culture. However, the appellant had stopped wearing vermilion and Conch bangles after she started immersing herself in spiritual activities.

16. We have also noticed that in the final order dated 04/03/2021 passed by the Court of learned JMFC, Cachar, Silchar, in DV Case No. 146/2017, the Court has stated in para 15 that the appellant wore white clothes at times and she belonged to the Dimasa Kachari community and was a Hindu. The appellant knew the rituals of the Hindu religion and that widow wore white clothes. The Court of the learned JMFC in the final order dated 04/03/2021, at para 21, has also observed that PW-2 (brother of the present appellant) in the DV Case No. 146/2017 had, in his cross examination admitted that the appellant had joined Prajapita Brahmakumari Ishwaria Vishwavidyalaya and started to live in white attire even after the protest made by the respondent and elders of the village. The Court of the learned JMFC in the DV case further held in para 21 of the said order dated 04/03/2021 as follows :-

"21.Hence, it is clear that the dispute between the parties started right from the aggrieved joining the said institution and abstaining from performance of the rites and rituals of Dimasa Community which hurt the sentiments of the respondent and even after protest and meetings of elders the said matter could not be resolved and this was not the end, the aggrieved person lodged a case of domestic violence against the respondent and hence unable to bear the same the respondent left his quarter and started residing in a rented house....."

17. The above facts, in our view, goes to show that the appellant had joined the Prajapita Brahmakumari Ishwaria Vishwavidyalaya and had started living in white attire by wearing white clothes only. The issue is whether the appellant had withdrawn Page No.# 9/11 herself from family life, thereby, neglecting the respondent-husband. In this respect, the Court of the learned JMFC, Cachar, Silchar, in DV Case No. 146/2017, has again made an observation in the same para 21 as follows :-

"Although she had every right to practice any religion, sect of her choice but withdrawing herself from practising the norms, rites and rituals of the Dimasa Community she chose to lose her originality and this hurt the sentiments of the respondent and as a result of which he left his quarter and started to reside in a

separate rented house even after the quarter was allotted in his name."

18. The evidence of PWs- 2 & 3 in FC(Civil) case no. 347/2018 before the learned Family Court also shows that the appellant devoted all her time to spiritual activities and had stopped living the life of a married woman.

19. While looking at the official website of Brahmakumaris, we find that a member of the Brahmakumari must be a complete celibate and there are some practices to be followed throughout the day. There are meditation periods and students of Brahmakumari can only stay in the company of other members of the organisation. They also have to wear only white clothes as a symbol of purity and must follow a strict vegetarian diet. When a Brahmakumari becomes a complete celibate, it is quite apparent that the respondent husband will not be able to have any physical relationship with the appellant, which is a significant and accepted part of marriage. On considering the evidence given before the Family Court and keeping in view the observations and findings made by the learned JMFC, Cachar, Silchar, in DV Case No. 146/2017, we are of the view that the appellant had become a member of the Prajapita Brahmakumari Ishwaria Vishwavidyalaya and had given up her wifely duties, to be replaced by a spiritual life.

20. With regard to whether the actions of the appellant in neglecting her wifely duties and taking part in spiritual activities throughout the day, would amount to Page No.# 10/11 cruelty, we are of the view that as a married couple, there are certain duties to be performed by either of the parties, one amongst them is companionship. As stated in the foregoing paragraphs, having a physical relationship is also an important and accepted aspect of marriage. Once the same is denied, it amounts to mental cruelty under section 13(1)(ia) of the Hindu Marriage Act, 1955. The evidence of the witnesses and the evidence recorded by the learned JMFC in the DV Case No. 146/2017 clearly show that the appellant has withdrawn from family life and embraced spirituality.

21. In the case of Amutha Vs. A.R. Subramanian [Civil Appeal No. 2643/2023], the Supreme Court held that marriage is a relationship built on mutual trust, companionship and shared experiences. When these essential elements are missing for an extended period, the marital bond become a mere legal formality, devoid of any substance. It held that prolonged separation coupled with inability to reconcile, is a relevant factor in deciding matrimonial disputes.

22. In the case of N.G. Dastane Vs. S. Dastane [1975 2 SCC 326] the Supreme Court held that cruelty is not confined to physical violence, but also encompasses actions that inflict mental pain and suffering that creates a reasonable apprehension of harm or injury to the aggrieved spouse, from the conduct of the other spouse, so as to make it impossible for them to stay together. In the present case, the appellant while taking a stand that she wants to co-habit with the respondent, has however opted for a spiritual life, while forgetting her family life and duties. Refusal of marital obligations and refusing to live a normal ordinary family life as requested by the respondent, the elders of the community and the village, amounts to mental cruelty.

23. In the present case, besides the appellant devoting all her time to spiritual Page No.# 11/11 activities, had also filed a DV case against the appellant. In the case of Rani Narasimha Sastry Vs.

Rani Suneela Rani [2019 SCC OnLine SC 1595], the Supreme Court has held that it cannot be accepted that no cruelty was meted out to the husband, when he has been made to undergo trial in which he is acquitted, on the allegation of committing an offence under section 498(A) IPC, leveled by his wife. In the case of K. Srinivas Rao Vs. D.A. Deepa [(2013) 5 SCC 226] , the Supreme Court held that the filing of a case under section 498(A) IPC by the wife against the husband, which was subsequently withdrawn, amounted to causing mental cruelty to the husband.

24. Thus, when the appellant has filed a case of Domestic Violence against the respondent, it cannot be said that the appellant has not caused mental cruelty to the husband. It would also be very hard for the respondent to reconcile with the appellant, after he has been made to go through a DV case. We are thus of the view that for all the reasons stated above, a case of mental cruelty has been made out by the respondent.

25. In view of the above reasons, we do not find any ground to interfere with the dissolution of marriage under section 13(1)(ia) of the Hindu Marriage Act, 1955. The appeal is accordingly dismissed.

26. Send back the TCR.

JUDGE

JUDGE

Comparing Assistant